

ASCII MASTER FLOW – PANEL 1/9: Canonical Part XXI scope and the boundary with other topics

PART XXI: TEMPORARY, TRANSITIONAL AND SPECIAL PROVISIONS

Articles 369-392 include time-bound transitional rules, continuance/adaptation devices and State-specific constitutional asymmetry.

THIS TOPIC OWNS

Article 370 evolution/current status + Articles 371-371J + asymmetry mechanisms.

DISTINCT OWNERS

Part XVIII emergencies | reservation/class provisions | Part X and Fifth/Sixth Schedules
| ordinary Union-State flexibility | Union Territory administration.

CORE IDEA

constitutional equality permits reasoned differentiation; special treatment remains inside one Constitution and does not create separate sovereignty.

ASCII MASTER FLOW – PANEL 2/9: Article 370 before 2019: accession, Orders and constitutional application

PRE-2019 OPERATING CHAIN

Instrument of Accession fields -> Article 370(1) consultation/concurrence
-> Presidential Orders -> wider Constitution and Union-law application to J&K.

ARTICLE 35A

1954 Constitution Application Order -> permanent-resident definition and specified protections.

CONSTITUENT ASSEMBLY ISSUE

Article 370(3) proviso referred to J&K Constituent Assembly; it dissolved in 1957.

Sampat Prakash (1968) -> Article 370 and Presidential-Order practice continued after 1957.

LIMIT

autonomy was constitutionally mediated; it did not amount to external sovereignty.

ASCII MASTER FLOW – PANEL 3/9: The 2019 constitutional-order and reorganisation sequence

5 AUGUST 2019

C.O. 272 under Article 370(1) -> Constitution applied comprehensively
-> interpretive change used the State-legislature route while President's Rule operated.

PARLIAMENTARY RESOLUTION

recommended Article 370(3) declaration.

6 AUGUST 2019

C.O. 273 -> Article 370 provisions ceased to operate except the modified declaration.

J&K REORGANISATION ACT, 2019

former State -> UT of Jammu and Kashmir with legislature
+ UT of Ladakh without legislature, effective 31 October 2019.

TRAP

Presidential Orders, parliamentary resolution and reorganisation statute are distinct legal acts.

ASCII MASTER FLOW – PANEL 4/9: In Re Article 370 (2023): holdings and issues left open

In Re Article 370 of the Constitution (2023)

- +-- Article 370 was temporary; J&K had no internal sovereignty after accession
- +-- Article 370(3) power survived dissolution of the J&K Constituent Assembly
- +-- C.O. 273 declaration was upheld
- +-- C.O. 272's Article 367 route was invalid, but the final outcome survived independently
- +-- J&K Constitution became inoperative after full application of India's Constitution.

OPEN / QUALIFIED

Court recorded restoration-of-Statehood assurance and set no judicial deadline.

It did not finally decide the State-to-UT conversion issue after the Union concession.

VERDICT

the Article 370 abrogation question is judicially settled; Statehood timing remains political/legal.

ASCII MASTER FLOW – PANEL 5/9: Current Jammu and Kashmir and Ladakh position

JAMMU AND KASHMIR

Union Territory with legislature | Assembly elections held Sep-Oct 2024
| Statehood not restored as of 24 August 2026.

LADAKH

Union Territory without legislature.

Demands include Statehood, Sixth Schedule protection and Article 371-type safeguards.

LEGAL STATUS CONTROL

demands, committee talks and political assurances are not enacted constitutional change.

DISTINCTION

J&K Statehood restoration -> reorganisation/federal-status question

Ladakh Sixth Schedule -> Article 244 + Sixth Schedule autonomy question

Article 371-type protection -> Part XXI amendment question.

ASCII MASTER FLOW – PANEL 6/9: Articles 371 to 371D: development and regional-equity mechanisms

ARTICLE 371

Maharashtra/Gujarat -> Governor's special responsibility for regional development boards, equitable funds and opportunities.

ARTICLE 371A: NAGALAND

specified religious/social practices, customary law, customary justice and land/resources shielded from parliamentary law unless State Assembly resolves otherwise.

ARTICLE 371B: ASSAM

Assembly committee for tribal areas.

ARTICLE 371C: MANIPUR

Hill Areas Committee + Governor reporting/special responsibility framework.

ARTICLE 371D: ANDHRA PRADESH/TELANGANA

equitable local opportunities in public employment/education; presidential-order mechanism.

ARTICLE 371E merely enables a Central University in Andhra Pradesh.

ASCII MASTER FLOW – PANEL 7/9: Articles 371F to 371J: identity, law-and-order and local opportunity

ARTICLE 371F: SIKKIM

integration-specific Assembly, representation and continuity protections.

ARTICLE 371G: MIZORAM

specified religious/social practices, customary law/justice and land protection
unless State Assembly resolves otherwise; distinct from Nagaland's resource wording.

ARTICLE 371H: ARUNACHAL PRADESH

Governor's special responsibility for law and order, exercised after ministerial consultation.

ARTICLE 371I: GOA

minimum Assembly size safeguard.

ARTICLE 371J: KARNATAKA

development board, equitable funds and local reservation/opportunity mechanisms.

EXAM RULE

match State -> Article -> protected subject -> decision-maker -> consent/resolution requirement.

ASCII MASTER FLOW – PANEL 8/9: Mechanism comparison: Orders, amendments and tribal Schedules

ARTICLE 370 HISTORIC ROUTE

Presidential Orders under its own text -> now inoperative after 2019/2023 control.

ARTICLES 371-371J

constitutional text created or changed through constitutional-amendment history;
some clauses authorise Presidential Orders or Governor responsibilities for implementation.

FIFTH SCHEDULE

Scheduled Areas + Governor/Tribes Advisory Council + presidential declaration architecture.

SIXTH SCHEDULE

autonomous district/regional councils in Assam, Meghalaya, Tripura and Mizoram.

DO NOT MERGE

Article 371A/371G consent shields != Sixth Schedule councils

!= Fifth Schedule administration != Article 370's former application mechanism.

ASCII MASTER FLOW – PANEL 9/9: Federalism, equality, current traps and qualified synthesis

WHY ASYMMETRY

historical compact + cultural identity + tribal land/custom + regional imbalance
-> tailored guarantee -> integration with protection.

RISKS

insider-outsider exclusion | weak implementation | Governor controversy
| unequal opportunity | permanent grievance politics.

PRELIMS FIREWALL

Article 370 printed but inoperative | Articles 371-371J still operative
| 371E enables a university | 371I concerns Goa | 371H law and order
| Fifth/Sixth Schedules are not Part XXI | Ladakh demands are not law.

MAINS SPINE

define asymmetric federalism -> classify mechanism -> exact Article/State
-> benefit -> equality/federal counterpoint -> implementation reform
-> unity through constitutionally bounded and reviewable difference.